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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NOTICE OF FILING: NEWS MEDIA'S
RESPONSE TO PETITION FOR
PERMISSION TO APPEAL
INTERLOCUTORY ORDER**

Case No. 251403576

Hon. Tony F. Graf, Jr.

The News Media hereby provide notice of filing of the News Media's Response to Defendant Tyler James Robinson's Petition for Permission to Appeal Interlocutory Order. The Response is attached to this Notice as Exhibit A.

RESPECTFULLY SUBMITTED this 22nd day of June 2026.

PARR BROWN GEE & LOVELESS

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EXHIBIT A

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IN THE SUPREME COURT OF THE STATE OF UTAH

TYLER JAMES ROBINSON, Petitioner, v. STATE OF UTAH, Respondent.	NEWS MEDIA’S RESPONSE TO PETITION FOR PERMISSION TO APPEAL INTERLOCUTORY ORDER Appeal No. 20260695-SC Dist. Ct. No. 251403576
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Pursuant to Rule 5 of the Utah Rules of Appellate Procedure and this Court’s June 6, 2026 order, the News Media submit this Response to Defendant Tyler James Robinson’s Petition for Permission to Appeal Interlocutory Order.

INTRODUCTION

The public has a constitutional right of access to criminal proceedings. *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 580 (1980). But most members of the public cannot attend given courtroom capacities and the timing and location of proceedings, so the press “often act as surrogates in asserting the public’s constitutional right of access.” *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 521–22 (Utah 1984). Just as news reporting ensures the public can access court proceedings, so too does electronic media coverage (EMC), especially in today’s modern media ecosystem. In fact, EMC increases both the accuracy of reporting and public confidence in the criminal justice system by allowing members of the public to see and hear exactly what transpired in the courtroom and to form their own judgments. It thus serves the founding principle that “[p]eople in an open society do not demand infallibility from their institutions, but it is difficult for them to accept what they are prohibited from observing.” *Richmond Newspapers*, 448 U.S. at 572.

EMC does not inherently prevent a criminal defendant from receiving a fair trial. *Chandler v. Florida*, 449 U.S. 560, 581 (1981). Rather, courts have continually recognized that open proceedings complement fair trial rights. *See, e.g., Press-Enterprise Co. v. Sup. Ct. of Cal. for Riverside Cnty.*, 478 U.S. 1, 7 (1986). States are thus “free to experiment” with EMC. *Chandler*, 449 U.S. at 582.

Nearly twenty years ago, recognizing the benefits of EMC, the Utah Judicial Council enacted Rule 4-401.01, which creates a presumption favoring EMC when the “predominant purpose of the [EMC] request is journalism or dissemination of news to the public.” Utah R. Jud. Admin. 4-401.01(2)(A). The rule explicitly instructs courts to

consider fair trial rights when determining if that presumption has been overcome. *Id.* R. 4-401.01(2)(B). Many high-profile cases have been prosecuted and tried in this state since then, nearly all of which involved some level of EMC. This case is hardly the first.

Recognizing that this, too, is a high-profile case, the district court here has been highly sensitive to both Defendant's fair trial rights and Utah's preference for EMC. The court issued a robust decorum order with strict EMC guidelines, directed that the video camera be placed only in the back corner of the courtroom, and created a briefing schedule that ensures EMC disputes are efficiently resolved. These measures protect Defendant's fair trial rights without sacrificing EMC.

Despite all this, and contrary to the process set forth in the rule, Defendant asked the court to impose an advance categorical ban on all cameras in every single proceeding for the entire remainder of the case (the Motion to Exclude or the Motion). Although the Motion purported to be about EMC, it was nothing more than a lengthy polemic against "the media" writ large and all negative pretrial publicity no matter its source, including statements made by politicians and online commentators.

After an evidentiary hearing, the district court denied the Motion, concluding Defendant had not shown a reasonable likelihood of prejudice to his fair trial rights (the Order). The court also concluded that the plain language of Rule 4-401.01 requires motions to restrict EMC to be brought on a hearing-by-hearing basis, rather than in a blanket and categorical fashion. Finally, the court established briefing deadlines and page limits for EMC disputes to ensure they are efficiently resolved.

Since issuing the Order, the district court has reiterated that Defendant has not shown a reasonable likelihood of prejudice to his fair trial rights. The court has also considered, and rejected, Defendant's motion to close the preliminary hearing to the public, concluding yet again that Defendant's fair trial rights are not in jeopardy and that less restrictive alternatives to closure are available, including detailed juror questionnaires, an expanded jury pool, and thorough voir dire.

Defendant's petition seeks interlocutory review of the Order. But Defendant has not demonstrated that immediate review is warranted, let alone that there are any reversible errors for this Court to correct.

First, Defendant asserts that the district court refused to consider his constitutional arguments. That is incorrect. In the Order, the district court explicitly considered and rejected Defendant's constitutional arguments. And since then, the court has continued to consider his constitutional arguments and rule that less restrictive alternatives are available to protect those rights.

Second, Defendant contends the EMC briefing guidelines violate his due process rights. Interlocutory appeal is not a vehicle for seeking appellate review of briefing deadlines and page limits. And even if it were, the district court acted well within its discretion by implementing reasonable guidelines.

The petition should be denied.

BACKGROUND

The Presumption Favoring EMC

In Utah, there is a presumption favoring EMC “by a news reporter ... where the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public.” Utah R. Jud. Admin. 4-401.01(2)(A). “The judge may prohibit or restrict [EMC] in those cases only if the judge finds that the reasons for doing so are sufficiently compelling to outweigh the presumption.” *Id.* To decide whether the presumption has been overcome, the court considers a list of factors. *Id.* R. 4-401.01(2)(B). Those factors include, among others, “whether there is a reasonable likelihood that [EMC] will prejudice the right of the parties to a fair proceeding.” *Id.* R. 4-401.01(2)(B)(i).

“If the judge prohibits or restricts electronic media coverage, the judge shall make *particularized findings* orally or in writing on the record.” *Id.* R. 4-401.01(2)(C) (emphasis added). “Any reasons found sufficient to prohibit or restrict electronic media coverage shall relate to the *specific circumstances* of the proceeding rather than merely reflect generalized views or preferences.” *Id.* R. 4-401.01(2)(D) (emphasis added).

A news reporter that wants to provide EMC must request permission by submitting a written request “at least one business day before the proceeding,” although the court may require more notice and, for good cause, “may grant a request on shorter notice.” *Id.* R. 4-401.01(3)(A). There are additional restrictions on EMC, including that coverage is limited to one audio recorder, one video camera, and one still camera. *Id.* R. 4-401.01(4)(A), (6).

Defendant Requests a Blanket Camera Ban

From the inception of this case, the district court has been attuned to Defendant's constitutional rights, including his right to a fair trial. But the court has also recognized that EMC is not antithetical to those rights and that appropriate measures protect Defendant's rights without cutting off EMC.

To illustrate, at one hearing, the court directed the video camera operator to set up in the jury box, near the defense table. This placement resulted in inadvertent and fleeting images of Defendant's shackles, so the court relocated the video camera to the other side of the courtroom.¹ The court has since relocated the video camera to the back corner of the courtroom, eliminating any concerns about the prior placement:



¹ No images of shackles lasted more than fifteen seconds, and the total time of visible shackles was less than one minute. That is less than one percent of the courtroom footage livestreamed for that hearing. (Add. F to Pet., Dkt. 440, News Media Suppl. Opp. at 15–16.) The defense argued there were other decorum order violations, but it did not provide evidence of those alleged violations. (*Id.*)

Associated Press, *Hearing in case of Tyler Robinson, the man accused of killing Charlie Kirk* (YouTube, June 12, 2026), <https://perma.cc/F94B-MVSC>.

The News Media has not challenged the video camera location, nor have there been any alleged decorum order violations since the relocation. Even so, the district court begins each hearing by questioning the camera operators to ensure they understand the decorum order. (*See, e.g.*, Add. G to Pet., Evidentiary Hr’g Tr. at 5:7–6:11.)

Despite these measures, Defendant moved to exclude all cameras from the courtroom for all future proceedings in the case. (Add. B to Pet., Dkt. 305, Motion to Exclude.) The 181-page Motion to Exclude is, at bottom, a rambling complaint about “the media.” It devotes little time to the analysis required by Rule 4-401.01, focusing instead on arguing that various officials and commentators violated ethical rules, that the Judicial Council should not have enacted Rule 4-401.01, and that the U.S. Supreme Court announced a “per se” rule against EMC in “notorious” cases. (*See, e.g., id.* at 11–18, 78–79, 90–118, 126–30, 139–40, 174–79.) The News Media opposed the Motion, pointing out that EMC is presumptively favored and that Defendant failed to overcome the presumption in the way the rule mandates.² (News Media Suppl. Opp. at 5–16.)

² Although the Motion to Exclude was based on publicly available information, the defense filed the Motion to Exclude under seal and refused to provide the motion to counsel for the News Media. So the News Media moved for attorneys-eyes-only access. (Dkt. 335.) The court granted that motion and ordered the defense to provide the Motion to Exclude to counsel for the News Media. (Dkt. 417.) The court also denied the defense’s motion to classify the Motion to Exclude, requiring the defense to file a public version of the Motion to Exclude that included only limited redactions. (Dkt. 460, 468.)

At Defendant's request, the court held an evidentiary hearing on the Motion where both the defense and the prosecution presented evidence and argument. Counsel for the News Media was not allotted any time.

Most of the evidentiary hearing was consumed by the defense's two experts, Dr. Bryan Edelman and Dr. Christine Ruva.

Dr. Edelman testified that he is a trial consultant who also does "pretrial research such as focus groups, mock trials." (Evidentiary Hr'g Tr. at 89:20–90:6.) Dr. Edelman testified about pretrial publicity more generally, explaining his concern that the public is confused by news coverage that incorporates EMC. (*Id.* at 99:19–121:5.) He also testified about a phone survey he conducted of jury-eligible Utah County residents. (*Id.* at 121:8–25.) The survey led to the following results:

- 81% of respondents had not "read, seen, or heard if President Donald Trump expressed an opinion about whether Tyler Robinson should receive the death penalty";
- 65% of respondents had not "read, seen, or heard if any other public officials have said that Tyler Robinson should receive the death penalty for killing Charlie Kirk";
- 56% of respondents had not "read, seen, or heard if Tyler Robinson confessed to shooting [Charlie] Kirk";
- 65% of respondents had not "read, seen, or heard if Tyler Robinson's DNA was found at the scene of the crime"; and
- 74% of respondents had not "seen any video footage or video clips of the courtroom proceedings from Tyler Robinson's case, for example, on Court TV, YouTube, or social media."

(*Id.* at 150:15–151:7, 156:19–22.)

Dr. Ruva studies juror decision making, including “the effects of pretrial publicity on a juror’s decision and their memory.” (*Id.* at 168:10–15.) Her research is based entirely on mock jurors. (*Id.* at 184:15–23.) Mock jurors differ from actual jurors in several material ways—mock jurors are not naturally exposed to pretrial publicity, are not selected through a process overseen by a judge, do not sit through a real trial, do not reach a verdict that has real consequences, and do not take an oath to follow court instructions. Given these limitations, some researchers conduct surveys of actual jurors, but as Dr. Ruva testified, surveys also have limitations. (*Id.* at 185:16–186:6.)

Dr. Ruva touched briefly on the specific pretrial publicity in this case. (*Id.* at 171:5–24, 174:22–175:6, 195:13–23.) However, she admitted that she had reviewed only the news coverage cited in the Motion to Exclude and had not done her own research of the coverage.³ (*Id.* at 171:5–6, 197:3–4.)

³ The Motion to Exclude included a cherry-picked selection of coverage by “the media” and “the electronic media.” Most of those posts were not by the News Media who are parties here, and the defense used the terms “media” and “electronic media” to reference individuals not affiliated with any news organization. (News Media Suppl. Opp. at 12.) Moreover, the Motion to Exclude ignored the responsible journalism that has incorporated EMC. *See, e.g.,* Liv Kelleher & Jonathan May, *Tyler Robinson in Court as Arguments Continue Over Alleged Conflict of Interest*, KUTV (Feb. 3, 2026), <https://perma.cc/Y8RZ-YJ55>; Pat Reavy, *Prosecution Says It Had to Counter ‘Absolutely Misleading’ Info From Tyler Robinson*, KSL (May 19, 2026), <https://perma.cc/QJ9G-ZMEL>; Emma Pitts, *Defense Argues Prosecutor’s Family Tie Should Be Disqualifying in Tyler Robinson Case*, Deseret News (Feb. 3, 2026), <https://perma.cc/BP2C-XKMY>; Jessica Schreifels, *Here’s Why Attorneys for the Man Accused of Killing Charlie Kirk Are Now Asking To Delay the Case*, Salt Lake Tribune (June 1, 2026), <https://perma.cc/S642-Y84S>; Jerem Tombs, *‘Where Does It End?’ What Happens If Judge Removes Prosecution from Robinson Case?*, Fox13 (Jan. 16, 2026), <https://perma.cc/ET7Y-CLAU>.

The Court Denies the Motion to Exclude

The court denied the Motion to Exclude. (Add. A to Pet., Dkt. 305, Order.) The Order began by considering and rejecting Defendant's constitutional argument. Defendant argued that cameras should be categorically banned because EMC "creates a reasonable likelihood of prejudicing [his] right to a fair and impartial jury." (Order at 5.) The court was not convinced and determined that a categorical ban was not justified because it had taken "remedial measures to abate threats to the fairness of these proceedings." (*Id.*)

Having concluded there was no reasonable likelihood of prejudice, the court turned to Rule 4-401.01. Defendant made two arguments concerning the interpretation of this rule, neither of which the court found persuasive.

First, Defendant argued for a "blanket finding" that in this case, there is no presumption favoring EMC because "the predominant purpose of [EMC] in this case is not for journalism or the dissemination of news." (Order at 6–7.) The court disagreed, concluding that it "must determine whether the presumption applies on a request-by-request basis, depending on the predominant purpose of the requesting news reporter." (Order at 7.) Because the defense had argued for a blanket finding, it necessarily failed to show the presumption did not apply. (*Id.*)

Second, Defendant argued that Rule 4-401.01 permits a court to find that the presumption favoring EMC "has been overcome for the pendency of a case, regardless of the type of proceeding held." (*Id.* at 7.) The court again disagreed. Rule 4-401.01 permits a court to prohibit EMC only if the court makes "particularized findings" that "relate to the specific circumstances of the proceeding rather than merely reflect generalized views or

preferences.” Utah R. Jud. Admin. 4-401.01(2)(C), (D). Given the requirement for “particularized findings” that “relate to the specific circumstances *of the proceeding*,” the court denied the defense’s request for a “categorical finding” that the presumption favoring EMC had been overcome. (Order at 7–8.)

The court also refined the process for requesting and opposing EMC. (Order at 8.) News reporters must request EMC at least 14 days before the scheduled proceeding, altering the presumptive 1-day deadline in Rule 4-401.01. (*Id.*) The court also established a briefing schedule and page limits. (*Id.*) Lastly, the court stated that the evidence from the hearing and all prior argument may be referenced in future EMC briefing. (Order at 9.)

The Court Continues to Consider and Reject Defendant’s Arguments

Since denying the Motion to Exclude, the court has—on two separate occasions—considered and rejected Defendant’s argument that EMC is reasonably likely to prejudice his fair trial rights.

First, on June 1, 2026, the court denied the defense’s motion to close portions of the preliminary hearing. (Dkt. 513, 563.) The court’s denial was based on two separate and independent grounds: (1) “[d]espite receiving notice of the State’s witnesses and exhibits for the preliminary hearing,” the motion did not “identify with sufficient specificity the evidence that, if presented in a public proceeding, would create a realistic likelihood of prejudice to Defendant’s right to a fair trial”; and (2) “assuming specific evidence had been identified that could present a risk to Defendant’s constitutional rights to a fair trial if publicly disclosed, the motion does not establish that no less restrictive alternatives remain available.” (Dkt. 563 at 2.)

Second, on June 12, 2026, the court denied Defendant’s motion to stay pending interlocutory review. (June 12, 2026 Hr’g Tr., attached as Ex. 1.) The court takes Defendant’s “concerns seriously,” but “the asserted threat of prejudice has not been yet shown.” (*Id.* at 8:13–25.) The court further emphasized that “extensive publicity does not, standing alone, establish that an impartial jury cannot ultimately be selected” because “[c]ourts have long addressed highly-publicized prosecutions through established procedural safeguards.” (*Id.* at 9:9–16.) “Likewise, prominence does not necessarily produce prejudice, and juror impartiality does not require ignorance.” (*Id.* at 9:20–22.)

Also at the June 12 hearing, the defense asked the court to reconsider the EMC briefing guidelines. (*Id.* at 15:8–28:16.) The court denied this request, concluding the guidelines gave all parties sufficient notice and opportunity to respond. (*Id.*)

ARGUMENT

Interlocutory appeals are permitted only “when there are good reasons for departing from the general rule that appeals should be taken only from final judgments.” *Kennecott Corp. v. Utah State Tax Comm’n*, 814 P.2d 1099, 1102 (Utah 1991). Although interlocutory appeals are permitted, they “should be avoided because they present appellate courts with multiple appeals involving narrow issues taken out of the context of the whole case which slow down the final determination of the matter.” *Id.* at 1101.

Because interlocutory appeal is disfavored, petitions for immediate review must demonstrate “why the appeal may materially advance the termination of the litigation.” Utah R. App. P. 5(c)(1)(D). A petition “may be granted only if it appears that the order involves substantial rights and may materially affect the final decision or that a

determination of the correctness of the order before final judgment will better serve the administration and interests of justice.” Utah R. App. P. 5(g).

Here, the petition requests review of two issues, arguing that the district court (1) failed to consider Defendant’s constitutional arguments and (2) violated Defendant’s due process rights by implementing briefing guidelines. The petition fails to demonstrate that either issue warrants immediate review.

I. The District Court Considered Defendant’s Constitutional Arguments.

Defendant first argues that interlocutory appeal is warranted because the district court “erred in refusing to even consider, much less give any weight to [his] Sixth Amendment right to a fair trial.” (Pet. at 16.) This is not grounds for immediate review because the district court did consider Defendant’s constitutional arguments. And even if immediate review were warranted, the petition should still be denied because Defendant has not identified a reversible error.

A. Defendant Has Not Demonstrated Grounds for Immediate Review.

Immediate review is not warranted because, contrary to Defendant’s assertion, the district court did consider whether EMC created a reasonable likelihood of prejudice to his Sixth Amendment rights.

In the Order, the court acknowledged Defendant’s argument that cameras should be banned because streaming “creates a reasonable likelihood of prejudicing [his] right to a fair and impartial jury.” (Order at 5.) The court disagreed, however, stating it had “taken remedial measures to abate threats to the fairness of these proceedings.” (*Id.*)

It was only after considering (and rejecting) Defendant’s constitutional argument that the district court turned to Rule 4-401.01. (*Id.*) The court concluded that Defendant’s categorical approach was inconsistent with the plain language of Rule 4-401.01, which requires courts to evaluate EMC requests on hearing-by-hearing basis and with reference to the motivations of the requesting news reporter. (Order at 5–8.)

In short, when the district court denied the Motion to Exclude, it plainly considered and rejected Defendant’s argument that EMC was reasonably likely to prejudice his fair trial rights. (Order at 5.) And to remove any doubt, the court reiterated its constitutional ruling at the June 12, 2026 hearing. (June 12, 2026 Hr’g Tr. at 7:21–9:22.) So Defendant is incorrect when he asserts that the court “flatly rejected [his] contention that his motion must be governed by state and federal constitutional rights.” (Pet. at 5.) Just the opposite. The court began with the constitutional analysis—which is also embedded in Rule 4-401.01—but found no reasonable likelihood of prejudice.

Because the district court considered Defendant’s constitutional arguments, interlocutory review would serve no purpose. Even if this Court concluded that Rule 4-401.01 permits categorical bans, the outcome would not change because the district court already ruled that Defendant failed to demonstrate a reasonable likelihood of prejudice. Defendant completely ignores that ruling and has not asked this Court to review it. (*See* Pet. at 8.) So even if there were doubts as to the district court’s conclusion (there are not), that issue is not properly before the Court. *See* Utah R. App. P. 5(c)(1) (stating the required contents of a petition).

Immediate review is also needless because Defendant can continue to raise his constitutional arguments on a hearing-by-hearing basis. For example, after the court denied the Motion to Exclude, Defendant moved to close portions of the preliminary hearing, and the court again ruled on his constitutional arguments. (Dkt. 513, 563.) Because the district court continues to evaluate Defendant's Sixth Amendment rights each time Defendant opposes EMC, pausing that deliberative process for this Court to consider whether the district court ruled on the constitutional arguments would only cause delay.

Because the district court considered and ruled on Defendant's constitutional arguments, granting interlocutory review would not "materially advance the termination of the litigation," "materially affect the final decision," or "better serve the administration and interests of justice." Utah R. App. P. 5(c)(1)(D), (g). Defendant has thus not demonstrated grounds for immediate review.

B. Defendant Has Not Identified Any Reversible Error.

Even if there were grounds for immediate review, the petition should still be denied because Defendant has not shown any reversible error.⁴

First, Defendant has not shown the court erred in denying the Motion to Exclude. The 181-page motion devoted much of its length to unhelpful policy arguments and descriptions of publicity unrelated to EMC. After the News Media pointed out Defendant's

⁴ The petition argues only that the district court erred by failing to consider Defendant's constitutional arguments and by implementing briefing guidelines. The petition does not present an analysis of why the Motion to Exclude should have been granted, nor does it argue the district court wrongly interpreted Rule 4-401.01. Nonetheless, the News Media provides this analysis in the event it is helpful to the Court.

failure to make EMC-specific arguments, the defense tried to cure that deficiency by calling experts to opine on EMC. But other than summarizing research into mock juries, the experts had little to say in support of the Motion. Indeed, Dr. Edelman’s finding that most eligible jurors have not seen any of the EMC undermines Defendant’s own argument that EMC has become so pervasive it is affecting his fair trial rights.

Given Defendant’s weak showing, the district court correctly denied his motion. EMC is not “inherently a denial of due process,” so Defendant needed to show that EMC in this case is reasonably likely to prevent a fair trial and that the time-honored measures for ensuring a fair trial will not work. *Chandler v. Florida*, 449 U.S. 560, 581 (1981); *State v. Allgier*, 2011 UT 47, ¶¶ 19–20, 258 P.3d 589 (discussing the “time-honored processes for selecting jurors”). Defendant simply failed to make that showing.

Second, Defendant has not shown any error in the district court’s conclusion that Rule 4-401.01 requires courts to consider the motivations of the requesting news reporter and to evaluate EMC on a hearing-by-hearing basis.

Rule 4-401.01 creates a presumption favoring EMC “where the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public.” Utah R. Jud. Admin. 4-401.01(2)(A). Notably, the rule directs courts to consider the “purpose of the electronic media coverage *request*.” *Id.* (emphasis added). The rule does not direct courts to consider the purpose of EMC generally. The rule thus requires courts to determine only the motivations of the requesting news reporter, as that is the only inquiry that sheds light on the “purpose of the [EMC] request.” *Id.* This reading comports with the plain language of the rule, but it also makes good sense. A court can evaluate a

reporter's motivations, but it should not have to conduct a freewheeling policy inquiry into the general purpose of all EMC, especially where the rule does not require it.

Rule 4-401.01 also states that before “prohibiting or restricting” EMC, a court must “make *particularized* findings” that “relate to the *specific* circumstances of the proceeding rather than merely reflect generalized views or preferences.” Utah R. Jud. Admin. 4-401.01(2)(C), (D) (emphasis added). A court cannot make these “particularized findings” if a party requests a categorical ban. As the district court explained, “Court proceedings vary in character and substance, ranging from scheduling conferences to oral arguments to evidentiary hearings and to the trial itself. The dangers of prejudice and the newsworthiness of the proceeding may vary considerably depending on its nature.” (Order at 7–8.) In short, proceedings vary significantly, so Rule 4-401.01 requires that requests for EMC and motions to restrict EMC occur on a hearing-by-hearing basis. *Id.*

Although the petition does not challenge the court's interpretation of Rule 4-401.01, Defendant cites *Kearns-Tribune* for the proposition that a “court can restrict or deny access altogether where necessary to assure that the defendant receives a fair trial before an impartial jury.” *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 522 (Utah 1984). (Pet. at 16.) But *Kearns-Tribune* was not about a categorical ban on cameras—rather, that case was about whether the public and press could be excluded from a preliminary hearing. *Id.* at 517. The News Media has never disputed that EMC can be terminated for an entire hearing if the court makes the necessary findings under Rule 4-401.01. But those findings must be made on a hearing-by-hearing basis. *Kearns-Tribune* did not hold differently.

For these reasons, Defendant has not shown any reversible error.

II. The District Court Has Discretion to Implement Briefing Guidelines.

Defendant also argues that interlocutory review is warranted because the district court “imposed severe procedural restrictions” on EMC briefing. (Pet. at 6.) This issue does not warrant immediate review.⁵

First, Defendant has not demonstrated grounds for immediate review. It should go without saying that pausing the proceedings so this Court can review briefing deadlines and page limits would only cause delay. For that reason alone, Defendant has not demonstrated grounds for immediate review. Utah R. App. P. 5(c)(1)(D), (g). And as set forth below, Defendant has not identified any due process violation, so he has necessarily failed to identify any substantial rights that might affect the final decision. *Id.* R. 5(g).

Second, even if Defendant had demonstrated grounds for review, the petition should still be denied because Defendant has not identified any reversible error.

Briefing deadlines and page limits do not violate due process. “Trial courts have broad discretion to manage their dockets and set firm deadlines for motion practice. This discretion is not limited by the importance or constitutional nature of the motion at issue.” *State v. Gonzalez*, 2015 UT 10, ¶ 48, 345 P.3d 1168 (cleaned up); *see also State ex rel. B.A.P.*, 2006 UT 68, ¶¶ 12, 14, 19, 148 P.3d 934 (rejecting argument that “restrictive page limits” and “condensed time frames” violated due process).

⁵ Defendant challenges only the briefing deadline and page limits—he does not challenge the district court’s ruling that it would not hold future hearings on motions to restrict EMC. (Pet. at 17–19.) Similarly, Defendant argues only that the guidelines for future motions violate his due process rights. He does not argue that limitations at the evidentiary hearing violated his due process rights.

The district court here acted comfortably within its discretion when it implemented page limits for EMC briefing. The district court has already received hundreds of pages of briefing, held an evidentiary hearing, and heard oral argument multiple times. The Motion to Exclude alone included thousands of pages of exhibits. Under these circumstances, it cannot be said that no reasonable person would implement page limits. Nor has Defendant given any explanation as to why the chosen limits will prevent him from making his arguments, especially considering he can reference prior evidence and arguments.⁶

The district court also acted within its discretion by implementing briefing deadlines. Rule 4-401.01 presumptively requires EMC requests to be filed 1 day before the hearing. Utah R. Jud. Admin. 4-401.01(3)(A). The court altered that deadline, requiring the News Media to file requests 14 days before the hearing. The News Media has dutifully complied.

Although the court created guidelines that ensure *more* time for briefing than required by Rule 4-401.01, Defendant still complains that he needs more time to prepare a motion opposing EMC. But Defendant provides no explanation of why 4 days is insufficient. Nor could he. Given the page limits and the prior briefing on EMC, 4 days is plenty. And if Defendant wants more time, he can begin working on a motion in advance of receiving the request. The News Media has submitted and will continue to submit an EMC request for each hearing in this case, so there is no suspense about whether EMC will

⁶ At the June 12, 2026 hearing, Defendant appeared to concede the page limits are reasonable. (June 12, 2026 Hr’g Tr. at 26:6–8 (“The Court has already set page limits, which are very modest. I think it’s four pages, four pages, and three pages. That’s fine.”)).

be at issue. Moreover, EMC requests are standard forms that contain no argument or analysis, so Defendant need not review the request before developing his arguments.

Finally, Defendant's concern that he might not receive notice is unfounded. The district court has stated that it will file all EMC requests on the docket, and Defendant has not identified a single time when he did not have adequate time to respond because the court delayed in filing an EMC request. (Order at 8.) In fact, all EMC requests that have been submitted since the court implemented the 14-day deadline have been filed on the docket the day they were submitted. (*See, e.g.*, Dkt. 539, 540, 555, 565, 566.)

For these reasons, Defendant has not demonstrated any need for immediate review.

III. Defendant's Authority Is Inapposite.

Unable to satisfy the Rule 5 requirements, Defendant tries analogizing this case to others where relief was granted. (Pet. at 11–14.) Those cases are readily distinguishable.

In *State v. James*, this Court granted interlocutory review and held that the trial court abused its discretion in denying a motion for change of venue. 767 P.2d 549, 550–56 (Utah 1989). *James* did not address the requirements at issue here, as the Rules of Appellate Procedure had not yet been enacted. *See* Utah R. App. P. Intro. Note. But regardless, *James* does not state a general preference for interlocutory review, nor does it hold there should be immediate review each time a criminal defendant raises concerns about pretrial publicity. If that were the case, immediate review would become the rule, not the exception. *See State ex rel. A.F.*, 2006 UT App 200, ¶ 10 n.2, 138 P.3d 65 (stating interlocutory review is for “rare” cases). Rather than stating a general preference for interlocutory review, *James* commented that when a court erroneously denies a motion for change of venue, immediate

review is preferable to reversal. 767 P.2d at 555–56. That is unsurprising and inapplicable here, where Defendant is not seeking review of a change of venue denial and has not demonstrated any reversible error.

Next, in a mandamus proceeding, the First Circuit concluded that a district court erred by interpreting its local rule to allow for webcasting of a civil hearing. *In re Sony BMG Music Ent.*, 564 F.3d 1 (1st Cir. 2009). The case was not about “the guaranty of a fair trial.” *Id.* at 9. Instead, it was “confined” to the narrow issue of whether the local rule permitted webcasting in civil proceedings. *Id.* The First Circuit concluded the rule prohibited webcasting, especially considering “the Judicial Conference’s unequivocal stance against the broadcasting of civil proceedings.” *Id.* at 7. The First Circuit’s analysis is irrelevant here because Rule 4-401.01 does not prohibit EMC—instead, it unequivocally creates a presumption favoring EMC. *See id.* at 6 (distinguishing rules that permit webcasting).

Finally, in *Hollingsworth v. Perry*, the U.S. Supreme Court stayed the broadcast of a federal trial “because it appear[ed] the courts below did not follow the appropriate procedures set forth in federal law before changing their rules to allow such broadcasting.” 558 U.S. 183, 184 (2010) (per curiam). That is not the case here. Rule 4-401.01 has existed in its current form since 2020 and, unlike the rule in *Hollingsworth*, was not enacted “at the eleventh hour to treat this case differently from other trials in the district.” *Id.* at 199. Accordingly, the rationale for granting a stay in *Hollingsworth* has no relevance here.

CONCLUSION

For the foregoing reasons, the petition should be denied.

RESPECTFULLY SUBMITTED this 22nd day of June 2026.

PARR BROWN GEE & LOVELESS

/s/ Jeffrey J. Hunt

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EXHIBIT 1

IN THE FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT

UTAH COUNTY, STATE OF UTAH

--oo0oo--

STATE OF UTAH,

Plaintiff,

VS.

TYLER JAMES ROBINSON,

Defendant.

)
)
)
)
) Case No. 251403576
)
)
)
)
)

) PARTIAL
) TRANSCRIPT OF:
) EVIDENTIARY HEARING/
) ORAL ARGUMENT

BEFORE THE HONORABLE TONY F. GRAF JR

FOURTH DISTRICT COURT
137 NORTH FREEDOM BOULEVARD
PROVO, UTAH 84601

June 12, 2026

A P P E A R A N C E S

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1 June 12, 2026; 9:04 AM

2 * * *

3 **THE COURT:** Court is now in session. Calling Case
4 No. 251403576, State of Utah versus Tyler James Robinson.

5 Counsel, please enter your appearances.

6 **MR. MCBRIDE:** Ryan McBride, Chris Ballard,
7 David Sturgill, Chad Grunander, and Jeff Gray for the State.

8 **THE COURT:** Good morning.

9 **MR. NOVAK:** Good morning, Your Honor. Kathy Nester,
10 Michael Burt, Richard Novak, and Staci Visser for Mr. Robinson,
11 who is present.

12 **THE COURT:** Good morning.

13 Good morning to Mr. Robinson.

14 All right. Before addressing today's business, the
15 Court takes up a couple of preliminary matters. First, with
16 respect to courtroom protocol to maintain security and decorum.
17 Any individual who exits the courtroom during proceedings will
18 not be permitted to reenter until recess.

19 All counsel are expected to take reasonable measures
20 to safeguard confidential communication. Such measures may
21 include the use of screen protections on electronic devices and
22 care to avoid the inadvertent capture of privileged or private
23 discussions by recording equipment or by those present in the
24 courtroom.

25 In addition, the microphones at counsel table are

1 turned off as a further precaution. And when making arguments,
2 if -- if that occurs, I ask you to approach the lectern when
3 you do so.

4 Second, the Court will address the camera operator
5 and still photographer. And would those individuals please
6 come forward to the lectern.

7 Thank you. If you could state your full name, both
8 of you.

9 **THE PHOTOGRAPHER:** Francisco Kjolseth, Salt Lake
10 Tribune.

11 **THE VIDEOGRAPHER:** Eric Brown, KSTU Fox 13.

12 **THE COURT:** Good morning. So the purpose is to
13 ensure clarity regarding the expectations governing today's
14 proceedings. And could you -- well, have you reviewed the
15 Court's standing decorum order dated February 24, 2026?

16 **THE VIDEOGRAPHER:** Yes.

17 **THE PHOTOGRAPHER:** Yes.

18 **THE COURT:** All right. Do you understand the
19 requirements set forth in that order as they apply to your
20 activities today?

21 **THE VIDEOGRAPHER:** Yes.

22 **THE PHOTOGRAPHER:** Yes.

23 **THE COURT:** Do you require any additional time to
24 review the order or to adjust equipment to ensure compliance?

25 **THE PHOTOGRAPHER:** No.

1 **THE VIDEOGRAPHER:** No.

2 **THE COURT:** And do you anticipate any difficulty
3 complying with the order?

4 **THE VIDEOGRAPHER:** None.

5 **THE PHOTOGRAPHER:** No.

6 **THE COURT:** All right. I appreciate your
7 cooperation. Thank you.

8 **THE PHOTOGRAPHER:** Thank you.

9 **THE VIDEOGRAPHER:** Thank you.

10 **THE COURT:** Turning next to Defense Motion to Stay
11 Pending Interlocutory Review. And the Court will issue its
12 ruling on this matter.

13 Before the Court is Defendant's Motion to Stay
14 Pending Interlocutory Review. Defendant seeks to stay all
15 further proceedings in this capital case, specifically the
16 preliminary hearing scheduled for the week of July 6, 2026,
17 pending the Utah Supreme Court's disposition of his petition
18 for permission to appeal from an interlocutory order. The
19 State filed objection to the motion, and defendant subsequently
20 filed a reply. Having considered the parties' briefings, the
21 factual record, and the relevant authorities, the Court issues
22 the following ruling and order.

23 The defendant is charged with the aggravated murder
24 of Charlie Kirk, a capital felony offense. The media interest
25 in this case is extraordinary within the State of Utah. Due to

1 this intense public interest, defendant previously filed a
2 motion to exclude still photographers, TV cameras, and
3 microphones from the courtroom, seeking a categorical ban on
4 electronic media coverage during all proceedings.

5 On May 8, 2026, this Court issued its camera ruling
6 denying defendant's request for a blanket ban and concluding
7 that, under Utah Rule of Judicial Administration 4-401.01,
8 request for electronic media coverage must be evaluated on a
9 proceeding-by-proceeding basis rather than through a
10 categorical prohibition. The Court also established procedures
11 designed to provide advance notice of media requests and an
12 opportunity for the parties to be heard before any such request
13 is decided.

14 Subsequently, on May 29, 2026, defendant filed a
15 petition for permission to appeal from an interlocutory order
16 with the Utah Supreme Court, challenging the camera ruling on
17 state and federal constitutional grounds. On June 6, 2026, the
18 Supreme Court issued an order requesting that the State and
19 various media organizations file responses to defendant's
20 petition within 14 days.

21 Additionally, on June 1, 2026, this Court denied
22 defendant's motion to close portions of the upcoming
23 preliminary hearing and seal exhibits, concluding that
24 defendant had not demonstrated a realistic likelihood of
25 prejudice sufficient to justify closure, particularly where

1 much of the information at issue was already publicly
2 available.

3 The parties dispute the precise legal standard
4 governing a motion to stay pending interlocutory review.
5 Defendant argues that grant -- the granting of the stay lies
6 within the inherent and discretionary powers of the court,
7 varying "according to the requirements of each individual
8 case." In addition, Defense argues Rule 8 of the Utah Rules of
9 Appellate Procedure, which requires him to request a stay in
10 the trial court before seeking a stay from the Utah Supreme
11 Court.

12 Conversely, the State argues that under Rule 8(c)(2)
13 of the Utah Rule of Appellate Procedure, a movant must
14 demonstrate: A, a likelihood of prevailing on the appeal; B, a
15 likelihood of irreparable harm to the movant outweighing the
16 harm to any other party; and, C, that the stay is not adverse
17 to the public interest. Defendant contends the factors
18 contained in Rule 8(c) govern the waiver of a bond or security
19 requirement and do not establish the substantive standard for
20 granting a stay itself.

21 The Court concludes that regardless of whether the
22 motion is analyzed under the discretionary authority recognized
23 in Lewis or under the factors identified in Rule 8(c), the
24 result is the same because defendant has not established either
25 a sufficient concrete threat of irreparable harm or that the

1 balance of equities favor a stay.

2 Defendant argues that the proceeding -- that
3 proceeding with the July preliminary hearing while his petition
4 remains pending will cause irreparable harm to his
5 constitutional rights to a fair and impartial jury.

6 Specifically, defendant relies upon the expert opinion of
7 Dr. Christine Ruva, who opines that electronic media coverage
8 of the preliminary hearing may expose prospective jurors to
9 inadmissible hearsay evidence and create unconscious bias.

10 Defendant further relies on Sheppard, James, and Hollingsworth,
11 arguing that once a proceeding is publicly broadcast, any
12 resulting prejudice cannot be undone.

13 The Court takes defense -- defendant's concerns
14 seriously. The potential impact of extensive media coverage in
15 a capital case is neither hypothetical nor trivial. The Court
16 further recognizes, unlike many forms of pretrial prejudice,
17 widespread dissemination of information through modern and
18 electronic media may be difficult or impossible to fully
19 reverse once it occurs. The question presently before the
20 Court, however, is whether the record establishes a sufficient
21 concrete and imminent eminent risk of prejudice to justify
22 staying all proceedings while interlocutory review remains
23 pending.

24 The Court concludes that the asserted threat of
25 prejudice has not been yet shown -- has not yet been shown on

1 the present record to be sufficiently concrete to justify the
2 extraordinary relief requested. The Court does not minimize
3 defendant's concerns regarding publicity in a case of this
4 magnitude. Indeed, the Court has previously recognized that
5 media attention surrounding these proceedings is extraordinary
6 and that dissemination of preliminary hearing evidence presents
7 challenges not ordinarily encountered in most -- most criminal
8 cases.

9 Nevertheless, extensive publicity does not, standing
10 alone, establish that an impartial jury cannot ultimately be
11 selected. Courts have long addressed highly-publicized
12 prosecutions through established procedural safeguards,
13 including expanded jury pools, detailed jury questionnaires,
14 individualized voir dire, venue-related remedies where
15 appropriate, and careful judicial supervision of the jury
16 selection process.

17 As the United States Supreme Court observed in the
18 Nebraska Press Association versus Stuart, pretrial publicity
19 does not inevitably lead to an unfair trial, and predictions
20 regarding its ultimate impact are often uncertain. Likewise,
21 prominence does not necessarily produce prejudice, and juror
22 impartiality does not require ignorance.

23 In its June 1, 2026, order denying closure, this
24 Court concluded that defendant had not demonstrated a realistic
25 likelihood of prejudice sufficient to justify closure of the

1 portions of the preliminary hearing. Should concerns regarding
2 prejudice arise as the case progresses, this Court retains
3 broad authority to employ traditional safeguards to protect
4 defendant's constitutional rights, including expanded venire
5 procedures, comprehensive juror questionnaires, individualized
6 voir dire, changes of venue where warranted, and other remedies
7 authorized by law.

8 Moreover, no media organization has yet filed a
9 request for electronic media coverage of the July preliminary
10 hearing, and the Court has not been called upon to determine
11 whether such coverage will be permitted. Accordingly, the
12 asserted injury presently depends upon future events that have
13 not yet occurred, including whether any request for electronic
14 media coverage will be filed and, if so, how the Court will
15 rule on such a request. At this juncture, the Court cannot
16 assess those contingencies with sufficient certainty to
17 conclude that a stay is necessary.

18 The Court recognizes defendant's arguments that the
19 alleged injuries arise not merely from the possibility of
20 future media request, but from the operation of the framework
21 established in the Court's May 8, 2026, order while appellate
22 review remains pending. The Court has carefully considered
23 that concern. However, because any request for electronic
24 media coverage remains subject to case-specific review and
25 because no determination regarding coverage of the preliminary

1 hearing has yet been made, the Court concludes that the
2 asserted injury remains contingent rather than immediate. On
3 the present record, the possibility of future electronic media
4 coverage does not establish a sufficient concrete basis for
5 staying all proceedings pending interlocutory review.

6 The Court's denial of a stay should not be understood
7 as a determination that the defendant's concerns lack merit.
8 Rather, the Court concludes only that the current record does
9 not establish that such concerns have matured into a concrete
10 and immediate threat request requiring present intervention.
11 Given the procedural safeguards available to ensure the
12 selection of impartial jury, defendant has not established
13 irreparable harm warranting a stay at this time.

14 In balancing the equities, the Court must also
15 consider harm that a stay would impose upon other interested
16 parties.

17 The State argues that delay may impair the orderly
18 presentation of evidence, increase risk of faded memories, and
19 affect witness availability. The Court finds those concerns
20 legitimate and entitled to consideration.

21 Additionally, the victim representative has formally
22 asserted her right to a speedy disposition of this matter.
23 Under the Utah Constitution and Utah Code, victims possess
24 important rights to proceedings free from unreasonable delay,
25 and courts are obligated to consider those interests when

1 exercising discretion in criminal cases.

2 The Court acknowledges defendant argument concerning
3 victims' rights and defendant's constitutional protections.
4 However, because the Court has concluded that the defendant has
5 not demonstrated a sufficiently concrete threat to those
6 protections on the present record, the Court finds that
7 interests favoring the continued progression of the case weigh
8 against imposing a stay.

9 The Court continues to adhere to the reasoning set
10 forth in its May 8, 2026, camera ruling and its interpretation
11 of Utah Rules of Judicial Administration 4-401.01. At the same
12 time, the Court recognizes that reasonable jurists may disagree
13 regarding the proper application of that rule in a case
14 receiving this degree of public attention.

15 The Court further recognizes that the Supreme Court's
16 request for responses indicates that defendant's
17 position -- petition presents substantial issues warranting
18 careful appellate consideration. The Court does not regard the
19 Supreme Court's request as a routine procedure event and
20 acknowledges that the issues raised are of sufficient
21 significance to merit serious review. The Court expresses no
22 opinion regarding whether the interlocutory review ultimately
23 should be granted. The existence of substantial legal
24 question -- the existence of a substantial legal question,
25 however, remains distinct from the separate question presently

1 before this Court, whether the defendant has demonstrated that
2 a stay is presently necessary pending further review.

3 The Court remains persuaded that the procedures
4 established in its May 8, 2026, order are consistent with
5 Rule 4-401.01. Any future request for electronic media
6 coverage will be evaluated on the specific record then before
7 the Court, after affording the parties a full opportunity to be
8 heard pursuant to the procedures previously established.

9 Finally, the Court concludes that the public interest
10 presently favors allowing this matter to proceed in the
11 ordinary course. The public possesses a substantial interest
12 in the fair, orderly, and timely administration of criminal
13 justice. The Court further recognizes that public confidence
14 in the judicial process depends both upon transparency and upon
15 the preservation of constitutional trial rights. The Court
16 remains committed to safeguarding both interests throughout
17 these proceedings. Staying the preliminary hearing while the
18 Supreme Court considers whether to grant discretionary
19 interlocutory review would result in additional delay despite
20 the absence of a presently demonstrated need for such relief.

21 The Court recognizes the seriousness of defendant's
22 concerns and the significance of the issues presented before
23 the Supreme Court. The Court further recognizes that concerns
24 regarding pretrial publicity and electronic media coverage
25 implicate important constitutional values and warrant careful

1 judicial review.

2 Nevertheless, the potential prejudice identified by
3 defendant has not yet matured into a concrete and immediate
4 threat requiring intervention in the form of a stay.

5 Established procedural safeguards remain available to protect
6 defendant's right to a fair trial should further circumstances
7 warrant their use.

8 By contrast, a stay would impose an immediate and
9 concrete burden upon continued progression of this case,
10 including the interests of the State, witnesses, and victim
11 representative, as well as a broader public interest in the
12 timely administration of justice.

13 Nothing in this order should be construed as
14 foreclosing defendant from renewing an appropriate request for
15 relief should future developments materially alter the
16 circumstances presently before the Court. Should future
17 developments demonstrate a material difference of level of
18 publicity, media exposure, juror contamination risk, or other
19 circumstances affecting defendant's fair trial rights, the
20 Court will not hesitate to revisit appropriate protective
21 measures.

22 Likewise, nothing in this order predetermines how the
23 Court will rule on any future requests for electronic media
24 coverage of a particular proceeding. Accordingly, the
25 defendant has not established that a stay of the proceedings is

1 presently necessary or appropriate.

2 It is hereby ordered that the Defendant's Motion to
3 Stay Pending Interlocutory Review is respectfully denied.

4 And that concludes the order of the Court as it
5 relates to the stay.

6 Mr. Novak.

7 **MR. NOVAK:** Thank you, Your Honor.

8 On the same subject matter, and with respect to the
9 timing laid out in the Court's May 8, 2026 order, we have a
10 concern on behalf of Mr. Robinson that -- for the Court
11 to -- well, let me just back up.

12 There has been a request for electronic media
13 coverage in every single hearing in this case. So I think it's
14 fair for the Court and the parties to anticipate that there
15 will be a timely, under the May 8th ruling, request for
16 electronic media coverage for the preliminary hearing.

17 **THE COURT:** Uh-huh.

18 **MR. NOVAK:** The Court set up a -- what I'll call a
19 "briefing schedule" for how the parties respond to that request
20 for electronic media coverage. But it appears to us that the
21 Court wouldn't rule on the request for electronic media, any
22 request to prohibit or limit electronic media coverage, until
23 the morning of the preliminary hearing.

24 And I think that that creates some problems, at least
25 for Mr. Robinson, because if the Court were to disagree with

1 the relief Mr. Robinson seeks, we have no opportunity to seek
2 review of -- of Your Honor's order. And the Court just laid
3 out its acknowledgment that there are serious constitutional
4 issues which other jurists may disagree with vis-a-vis the
5 Court's conclusions.

6 So the request is that the Court modify, in some way,
7 the timing of that litigation, so that the parties and the
8 media can have a -- and their counsel can have a ruling
9 sufficiently before the first day of the preliminary hearing.
10 So that if some judicial review is going to be sought, it's not
11 happening after the preliminary hearing has already begun.

12 **THE COURT:** No, and I -- I appreciate that,
13 Mr. Novak. I note your concerns. And it is for that very
14 reason that the Court modified what was the procedure before,
15 which -- and please correct me if I'm wrong. I'm kind of going
16 off my memory. But the media was required under the rules to
17 give -- was it one-day notice before the hearing?

18 **MR. NOVAK:** It was something like that. So I -- so
19 the notice --

20 **THE COURT:** Hold on. Hold on.

21 **MR. NOVAK:** Sorry.

22 **THE COURT:** I want to finish.

23 **MR. NOVAK:** I'm sorry. Yeah.

24 **THE COURT:** But I appreciate you.

25 And so the Court expanded that to allow briefing,

1 where under the current rules as they're stated now, it
2 wouldn't even allow for briefing. It would create a greater
3 issue that you're proposing, because you wouldn't even be able
4 to file a motion, no response, and no reply.

5 The intent of the Court was to give the parties
6 sufficient notice, or -- or more notice than the rule currently
7 allows, to allow briefing, to allow that to be presented, and
8 for the Court to consider that as opposed to making a snap
9 decision the morning of the prelim. So the Court is coming in
10 with more information than simply the request for media
11 coverage being filed the day before, and then -- and then the
12 parties trying to come up with a -- an argument, and the Court
13 trying to make that decision on the day of trial.

14 And so that's the difference. And -- and the Court
15 anticipated that concern, and wanted to give the parties that
16 ability to articulate their concerns and allow the Court
17 sufficient time to consider those arguments, and weigh those
18 arguments against the constitutional rights of all parties,
19 and -- and render the best decision it can.

20 **MR. NOVAK:** So I acknowledge all that. I agree with
21 all that. I appreciate all that. What I'm referring to is:
22 Mr. -- Mr. Robinson's, or, depending upon how the Court rules,
23 the State's or the media's opportunity to seek interlocutory
24 review, if, as Your Honor states, it is true that what has to
25 be shown is the harm under facts that relates specifically to

1 the preliminary hearing.

2 Okay. So the Court has denied what I'll call a more
3 general blanket request to preclude electronic media coverage.
4 The Court has said it is going to take it up on a
5 hearing-by-hearing basis. And the Court has also said that
6 reasonable jurists may disagree with the Court's substantive
7 conclusions and the Court's ruling on our request for a stay.

8 And what I'm suggesting respectfully is: We may be
9 in the exact same place -- one of the parties may be in the
10 exact same place in the moments before the preliminary hearing,
11 at least presently, is scheduled to begin on July 6th.

12 So my question is: Can we get a ruling from the
13 Court sufficiently before July 6th, so that if some party seeks
14 a stay and interlocutory review, we're not doing that on
15 July 6th or July 7th or July 8th? Because by that point in
16 time, it's too late.

17 So we could have a ruling by WebEx. We could have
18 argument and ruling by WebEx. I totally respect that the Court
19 has a very busy calendar, and I also understand that the
20 preliminary hearing is starting two days after the 4th of July,
21 which this year is a big deal.

22 **THE COURT:** Sure.

23 **MR. NOVAK:** So what I'm trying to just do is plan
24 ahead, and think about whether the schedule that the Court set,
25 which we agree makes a significant difference in our ability to

1 litigate before Your Honor the issue, a way to resolve this so
2 that we also have the ability to seek review before it's too
3 late.

4 **THE COURT:** No, and I --

5 **MR. NOVAK:** And I'm literally talking about the last
6 few days of the week before. That's, I think, what we're
7 talking about.

8 **THE COURT:** And I appreciate that. And where I'm
9 coming from is: The Court cannot issue anticipatory rulings.
10 I can't go off hypotheticals. And I understand what you're
11 saying. I recognize that media requests have been filed, but I
12 can't issue a hypothetical ruling. It has to be squarely
13 before me.

14 And -- and I respect what you're saying, but I
15 imagine that you're probably preparing -- well, I'm not going
16 to assume, it's not appropriate. But perhaps you are already
17 preparing those motions in anticipation of such media request
18 being filed, and in -- in addition to anything else that you
19 may consider, and rightfully so.

20 And so it -- and there is also sufficient time
21 between now, given the ruling that the stay is not being
22 granted, knowing that the preliminary hearing is moving
23 forward, that it appears that there may be sufficient time for
24 the parties to prepare accordingly.

25 Again, the Court needs to wait until it's

1 squarely -- that that media request is -- has been filed.

2 Whether the parties file motions, it's possible that the
3 parties may or may not. I can't anticipate that. But I need
4 to wait until it's actually before me as opposed to trying to
5 read the tea leaves and guess.

6 **MR. NOVAK:** I'm not asking the Court for tea leaves,
7 so maybe I've been obtuse. What I'm saying is that the Court's
8 order currently provides that it will issue its ruling on any
9 objection to an EMC request the morning of the hearing, and
10 that's the problem. I'm not asking the Court to issue a ruling
11 now.

12 **THE COURT:** Sure. Okay.

13 **MR. NOVAK:** I'm not asking the Court to assume there
14 will be an EMC request. I can tell the Court that if there is
15 an EMC request, we will file an objection to that, which
16 shouldn't be a surprise. And so what I'm just saying is for
17 the orderly administration of justice, and in light of the
18 possible judicial divergence of opinion that Your Honor has
19 acknowledged, we are asking the Court to build into the
20 schedule that it has set, for any objections to any EMC request
21 that may be filed, a period of time before the subject hearing
22 at which the parties would receive a ruling.

23 And if I suggested in my statements that we were
24 actually asking the Court to assume that there is an EMC
25 request, and that we would oppose it, and that we're asking for

1 a ruling now, we're not. We think there should be a request,
2 and there should be briefing. We're just asking that the Court
3 build into the schedule a ruling moment that allows us, if
4 necessary, or some other party, if necessary, to seek review.

5 **THE COURT:** Thank you, Mr. Novak.

6 And the other kind of X factor is how quickly the
7 parties respond. If a motion is filed -- let's say an EMC
8 comes out on day one, and a motion is filed on day two, and
9 then the State files on day three, there may be more time.
10 And -- and so it -- one of the variables is how quickly the
11 parties respond, which the Court doesn't control.

12 And so that's a factor that may allow the Court
13 additional time to accomplish that. And this Court has tried
14 to be very diligent in being -- in expediting addressing
15 motions, and not letting them sit too long because I know it's
16 important to defense and to the prosecution and to all parties.
17 And so the Court is cognizant of that, and -- and will respect
18 that, and issue its rulings or -- or its analysis as quickly as
19 possible to afford you that ability.

20 **MR. NOVAK:** So the Court did set deadlines for
21 briefing. And what I will do, when there is an appropriate
22 break in today's proceedings, is we'll speak with counsel for
23 the State about whether we can agree to modify that briefing
24 schedule that the Court set, so that the -- the EMC request and
25 the parties' responses to it can be submitted to Your Honor

1 more in advance -- further in advance --

2 **THE COURT:** Sure.

3 **MR. NOVAK:** -- of July 6th, than the current schedule
4 allows. And then if we can agree on something, or if we can't,
5 we will let the Court know that. And I'm still going to ask
6 the Court to look at its calendar and suggest a hearing date,
7 if necessary, on what we, I think, can fairly anticipate will
8 transpire.

9 Again, because the media has requested that their
10 cameras be present at every hearing. And it would seem to me
11 that they would not miss the opportunity, from their point of
12 view, to broadcast the preliminary hearing.

13 **THE COURT:** Thank you, Mr. Novak. I appreciate you
14 addressing those or bringing those concerns up.

15 **MR. NOVAK:** So we'll bring that back to the Court at
16 the appropriate time today.

17 **THE COURT:** All right. Thank you, Mr. Novak.

18 Does the State wish to be heard on this issue?

19 **MR. BALLARD:** Yes. Thank you, Your Honor.
20 Christopher Ballard on behalf of the State.

21 Just like to point out that even assuming that there
22 is a request for electronic media coverage, which we, the
23 State, fully assumes there will be, and that the Court grants
24 that request, the equities, as far as whether to -- whether or
25 not to stay things to allow the defendant to then appeal that

1 ruling, that's really not going to change.

2 The circumstances that the Court has already
3 articulated in its order today, those equities really aren't
4 going to change between now and the preliminary hearing. And
5 the -- the appropriate procedure for reviewing the Court's
6 orders on electronic media coverage is not to pause the trial
7 proceedings and allow defendant to seek interlocutory review of
8 every potential -- of every order. The defendant can certainly
9 do that. He has the right to do that, but that's not the
10 appropriate remedy.

11 I just remind the -- the Court of the United States
12 Supreme Court statement in Chandler versus Florida, where it
13 said that the appropriate safeguard against potential prejudice
14 from pretrial publicity is the right to demonstrate that the
15 coverage compromised the ability of the particular jury that
16 heard the case to adjudicate it fairly.

17 So defendant is claiming he doesn't have a remedy.
18 He does have a remedy, and the remedy is to challenge the
19 Court's media order at the plenary appeal after this case is
20 complete. Thank you.

21 **THE COURT:** Thank you, Mr. Ballard.

22 (9:35 AM to 1:23 PM not transcribed.)

23 **MR. NOVAK:** And actually, in some ways, this may or
24 may not sync -- anyway, go ahead. I'm sorry.

25 **THE COURT:** Well, and I know where you're going.

1 Does that sync pretty closely with the last remaining issue of
2 briefing on the -- well, the problem with that is: Until it's
3 filed, the request for an EMC, that starts the time. I -- my
4 lawyer math doesn't get me to how close we are to the prelim
5 off the fly, but that's the trigger point.

6 **MR. NOVAK:** Well, I was -- I was an economist before
7 I was a lawyer.

8 **THE COURT:** All right. We will rely on you.

9 **MR. NOVAK:** So my math might help. So you just want
10 to hold that there for a second, and move on to the other one,
11 and then see if they're in sync, or what did you want to do?

12 **THE COURT:** Well, and I'm fine. It sounds we have a
13 good understanding for the briefing on that particular docket,
14 5930. So that -- that's been resolved.

15 Turning to the last issue is in regards to the EMC.
16 When would the 14 days --

17 **MR. NOVAK:** So, right now, the Court's order from May
18 says that media requests need to be filed 14 days before the
19 proceeding. Fourteen days before the proceeding, which is on
20 July 6th, is June 22nd. Which would not --

21 **THE COURT:** So a week from Monday.

22 **MR. NOVAK:** Pardon?

23 **THE COURT:** A week from this coming Monday.

24 **MR. NOVAK:** Yeah. So this is what I was going to
25 propose, and we did meet and confer about this.

1 **THE COURT:** Okay.

2 **MR. NOVAK:** And my understanding of the State's
3 position is they don't want the Court to change its order.
4 Okay. So I understand that's their position, but here is our
5 proposal.

6 We propose that, for purposes of the preliminary
7 hearing of July 6th, if it proceeds on that date, that the
8 Court adopt the following schedule: Any request for electronic
9 media coverage should be filed next Wednesday, June 17th. And
10 we will take it upon ourselves, meaning Mr. Robinson's defense
11 counsel, to personally notify counsel who have entered their
12 appearances on behalf of the media entities of any new deadline
13 that the Court sets today.

14 So we will notify them so that the Court doesn't have
15 to rush into publishing an amended order, unless the Court
16 wants to do so. But we can notify them, copy the State, copy
17 the Court's staff. It's a form, as I understand it. This is
18 the event. This is who is going to be behind the cameras.
19 It's submitted. Okay. It's not a complicated document.

20 So this is my suggestion is that we will notify the
21 media representatives today that any request for EMC needs to
22 be filed with the Court by the 17th, which is Wednesday. Today
23 is Friday.

24 We have an issue, which is a small delay between when
25 it's filed and when it's docketed.

1 **THE COURT:** Of course.

2 **MR. NOVAK:** And so what I'm going to suggest is that
3 two days -- two court days after it's docketed, we will
4 file -- anybody who is opposing it will file a response. And
5 then two more court days for anybody who wants to respond to
6 that, and two more court days for a reply. The Court has
7 already set page limits, which are very modest. I think it's
8 four pages, four pages, and three pages. That's fine. The
9 Court has said there won't be any oral argument; that's fine.

10 But if my schedule plays out correctly, and we
11 were -- we got a docketed EMC request on the 17th, and we filed
12 our response on the 19th, and the State filed any response to
13 our papers on Monday the 22nd. And then we filed a reply on
14 the 24th, it would be fully briefed by the 24th, which gives us
15 six plus six -- 12 days before the prelim.

16 **THE COURT:** All right. Thank you, Mr. Novak.

17 Does the State wish to be heard on this issue?

18 **MR. BALLARD:** Yes, Your Honor. Thank you.

19 I think -- we're not discounting the importance
20 of -- and the significance of the media issues in this case.
21 But I think it's significant, as Your Honor has already noted
22 earlier this morning, that you granted a very generous
23 opportunity to deal with these electronic media requests. It's
24 far more generous than what the rule requires.

25 It appears to me that what the defense wants is an

1 opportunity to get a ruling from this Court on electronic media
2 requests, so that then if it's a ruling that they don't agree
3 with, that then they can seek yet another interlocutory appeal,
4 and perhaps file a motion to stay this case.

5 And if you look at the procedure that the rule has
6 already established, the controlling Rule 4-401, the rule does
7 not contemplate appellate review of every electronic media
8 coverage order. And that's clear from the fact that the rule
9 only allows one-day notice for a request for electronic media
10 coverage.

11 And, in fact, it says that the Court, on good cause,
12 can grant a request for electronic media coverage -- it can
13 shorten the one-day time. I think it could be, you know, as
14 the hearing commences, if there was good cause.

15 So the -- as the Court has already established its
16 schedule, it allows 14 days before the hearing for the request.
17 Under that current schedule, the Court could have a ruling on
18 the request by July 2nd, which would be before the hearing. So
19 we don't believe that the -- that this procedure, which
20 presumes that electronic media coverage, those requests will be
21 granted, that it needs to be set up so that there can be the
22 potential for appellate review of every one of those orders.
23 Thank you.

24 **THE COURT:** Thank you.

25 All right. Thank you to the parties. I

1 appreciate -- I appreciate you conferring with each other, and
2 trying to find a solution.

3 I'm going to respectfully decline. I decline to
4 adopt what Mr. Novak presented, and here is why: There is
5 nothing that precludes the media from filing today, that
6 request, and being ahead of the deadline. And, again, that's
7 outside of my purview. It's their choice if they choose to
8 file, or if they choose to file one at all. And so the Court
9 will rely upon the previously set schedule.

10 Again, if the media files early, that doesn't
11 preclude the parties from filing as soon as they can or they
12 wish to, and the Court still having sufficient time to do
13 its -- do its duties. And so that's the ruling of the Court as
14 it relates to a different schedule as it relates to media
15 requests for coverage, EMC of the preliminary hearing on
16 July 6th.

17 It goes to the very last issue, which is: The Court
18 is taking these two issues argued today under advisement. And
19 as this Court typically does, I always like to review
20 everything. And I appreciate the quality of the arguments, the
21 quality of the briefing, and what is clear to me, the hard work
22 of both defense and prosecution, and the seriousness applied to
23 these important issues.

24 If you wouldn't mind taking a look at your calendars.
25 The Court has an opening on June 22nd at 9:30 AM to issue

1 rulings on both of these matters. And as is -- traditionally
2 has happened, it's done on WebEx. But, of course, I will hear
3 from the parties on their preference, as well as the attendance
4 of Mr. Robinson at that hearing.

5 **MR. MCBRIDE:** That date works for the Court, and we
6 would prefer WebEx. For the -- yeah. For the State. Sorry.

7 **THE COURT:** It's okay.

8 9:30 in the morning.

9 **MR. NOVAK:** That's fine with Mr. Robinson's counsel.
10 And we will ask that Mr. Robinson appear by WebEx, audio only,
11 from the jail, as usual.

12 **THE COURT:** All right. Thank you to the parties.

13 Anything further? Any party need the benefit of the
14 record before we go into adjournment?

15 **MR. MCBRIDE:** No.

16 **THE COURT:** Thank you all. And court is now
17 adjourned.

18 (Court adjourned at 1:32 PM.)
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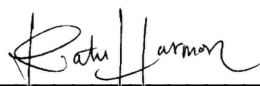
C E R T I F I C A T E

STATE OF UTAH)
)
COUNTY OF SALT LAKE)

 This is to certify that the foregoing proceedings
were taken before me, Katie Harmon, a Certified Shorthand
Reporter in and for the State of Utah, residing in Salt Lake
County, Utah;

 That the proceedings were reported by me in
stenotype, and thereafter caused by me to be transcribed into
printed form, and that a true and correct transcription of said
testimony so taken and transcribed is set forth in the
foregoing pages, inclusive.

 DATED this 19th of June, 2026.



KATIE HARMON, RPR, CSR
LICENSE NO. 7386959-7801

MR. BALLARD: [2] 22/19 26/18 MR. MCBRIDE: [3] 3/629/5 29/15 MR. NOVAK: [23] THE COURT: [35] THE PHOTOGRAPHER: [6] 4/94/174/224/255/55/8 THE VIDEOGRAPHER: [6] 4/114/164/215/15/45/9	8 8 [9] 84102 [1] 2/10 84103 [1] 2/13 84601 [1] 1/16 84606 [1] 2/7 8th [2] 15/1518/15	alone [1] 9/10 already [8] also [6] 6/1011/1418/518/19 19/219/20 alter [1] 14/15 always [1] 28/19 AM [3] 3/123/2228/25 amended [1] 25/15 analysis [1] 21/18 analyzed [1] 7/22 another [1] 27/3 anticipate [4] 5/215/1420/3 22/7 anticipated [1] 17/15 anticipation [1] 19/17 anticipatory [1] 19/9 anybody [2] 26/426/5 anything [2] 19/1829/13 anyway [1] 23/24 appeal [6] 5/186/157/1422/25 23/1927/3 appear [1] 29/10 appearances [2] 3/525/12 appears [3] 15/2019/2326/25 appellate [6] 7/97/1310/21 12/1827/727/22 application [1] 12/13 applied [1] 28/22 apply [1] 4/19 appreciate [9] approach [1] 4/2 appropriate [10] are [11] aren't [1] 23/3 argued [1] 28/18 argues [5] 7/57/87/128/211/17 arguing [1] 8/11 argument [5] 1/1012/217/12 18/1826/9 arguments [5] 4/110/1817/17 17/1828/20 arise [2] 10/210/19 articulate [1] 17/16 articulated [1] 23/3 ask [3] 4/222/529/10 asking [7] 20/620/1020/13 20/1920/2420/2521/2 asserted [4] 8/2410/1211/2 11/22 assess [1] 10/16 Association [1] 9/18 assume [3] 19/1620/1320/24 assumes [1] 22/23 assuming [1] 22/21 attendance [1] 29/3 attention [2] 9/512/14 ATTORNEY'S [1] 2/6 audio [1] 29/10 authorities [1] 5/21 authority [2] 7/2210/3 authorized [1] 10/7 availability [1] 11/19 available [3] 7/211/1114/5 Avenue [1] 2/15 avoid [1] 3/22	balancing [1] 11/14 Ballard [4] 2/53/622/2023/21 ban [2] 6/36/6 basis [3] 6/911/418/5 because [9] been [9] before [30] begin [1] 18/11 begun [1] 16/11 behalf [3] 15/1022/2025/12 behind [1] 25/18 being [5] 17/1119/1819/21 21/1428/6 believe [1] 27/19 benefit [1] 29/13 best [1] 17/19 between [3] 19/2123/425/24 bias [1] 8/9 big [1] 18/21 blanket [2] 6/618/3 bond [1] 7/18 both [5] 4/713/1413/1628/22 29/1 BOULEVARD [1] 1/15 BRADSHAW [1] 2/12 Brannan [1] 2/17 break [1] 21/22 briefed [1] 26/14 briefing [10] briefings [1] 5/20 bring [1] 22/15 bringing [1] 22/14 broad [1] 10/3 broadcast [2] 8/1122/12 broader [1] 14/11 BROWN [2] 2/124/11 build [2] 20/1921/3 burden [1] 14/9 Burt [3] 2/162/173/10 business [1] 3/14 busy [1] 18/19
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